

BC546240 BC546240

County: los-angeles

Division: Civil Law and Motion

Department: NWI

Hearing date: 2026-09-14

Motion: MOTION TO TAX COSTS

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Case Number: BC546240 Hearing Date: September 14, 2026 Dept: NWI

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

COUNTY

OF LOS ANGELES

YEVGENYA

SHEVTSOV, an individual, et al.,

Plaintiffs,

vs.

COUNTRY VILLA WILSHIRE HEALTHCARE, et al.

Defendants.

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CASE

NO: BC546240

[TENTATIVE]

ORDER RE: MOTION TO TAX COSTS

Dept.

I

HEARING

DATE: September 14, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: May 20, 2014

TRIAL

DATE: None set

I.

BACKGROUND

On May 20, 2014, Plaintiffs Yevgenya Shevtsov and Tatyana Shevtsov, as heirs and successor-in-interest to Nadezhda, deceased (collectively, "Plaintiffs") commenced this personal injury action against Defendants Country Villa Health Services, Inc. ("CVH"); West Hollywood Healthcare & Wellness Centre, LP ("WHW"); SR & DR Operating Company, LLC ("SDO"); Cedars-Sinai Medical Center ("CSMC"); RRT Enterprises, LP ("RRT"); Abraham Ishaaya ("Ishaaya"); Michael Borookhim ("Borookhim"); William Stanford ("Stanford"); Fannu Rodriguez ("Rodriguez"); Bradley Rosen ("Rosen"); Eurlyn Villamor ("Villamor"); Lourdes Uy ("Uy"); Eleanor Lavretsky ("Lavretsky"); Igor Shnaider ("Shnaider"); Gadson Johnson ("Johnson"); Niceto Lopez ("Lopez"); Marina Vaysburd ("Vaysburd"); Jay Gladstein ("Gladstein"); Jon Kea ("Kea"); Marina Kovalevsky ("Kovalevsky"); Carolyn Bell ("Bell"); Shaun Miller ("Miller"); Demi Penera ("Penera"); and DOES 1 to 10 (collectively, "Defendants").

On April 18, 2025, Plaintiffs dismissed Villamor and Uy with prejudice.

On January 16, 2026, Plaintiffs filed the operative First Amended Complaint ("FAC") against the remaining Defendants, asserting causes of action for: (1) Intentional Tort; (2) Wrongful Death; (3) Elder Abuse and Neglect; (4) Battery; (5) Civil Conspiracy to Commit Elder Abuse and Battery; (6) Fraud; (7) Constructive Fraud; (8) Fraud by Misrepresentation; (9) SNF Patient Rights' Violations; and (10) Willful Misconduct.

On April 23, 2026, CSMC filed a Demurrer to the FAC. On April 24, 2026, SDO filed a Demurrer with Motion to Strike the FAC. These matters were fully briefed and came for hearing on June 30, 2026; the demurrers and motion to strike were sustained without leave to amend.

On April 29, 2026, Plaintiffs dismissed Ishaaya, Borookhim, Stanford, Rodriguez, Rosen, Lavretsky, Shnaider, Johnson, Lopez, Vaysburd, Gladstein, Kea, Kovalevsky, Bell, Miller, Penera with prejudice.

On August 19, 2026, Plaintiffs filed the instant Motion to Strike Memorandum of Costs. On August 31, 2026, CSMC filed an Opposition. On September 4, 2026, Plaintiffs filed a Reply.

II.

LEGAL

STANDARD

“Except

as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” (Code Civ. Proc., § 1032, subd. (b).) “Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.” (Code Civ. Proc., § 1033.5, subd. (c)(2).) “If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary.” (*Ladas v. California State Auto. Assn.* (1993) 19 Cal. App. 4th 761, 774.) “On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs.” (*Ibid.*)

“A

prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case.” (Cal. Rules Court, Rule 3.1700, subd. (a)(1).) A verified cost memorandum is “prima facie evidence of the propriety of the items listed on it, and the burden is on the party challenging these costs to demonstrate that they were not reasonable or necessary.” (*Adams v. Ford Motor Co.* (2011) 199 Cal.App.4th 1475, 1486.)

“Any

notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum. If the cost memorandum was served by mail, the period is extended as provided in Code of Civil Procedure section 1013. If the cost memorandum was served electronically, the period is extended as provided in Code of Civil Procedure section 1010.6(a)(4).” (Cal. Rules Court, Rule 3.1700, subd. (b)(1).)

III.

DISCUSSION

Plaintiffs

moves to tax and/or strike CSMC's memorandum of costs ("MOC") filed on August 4, 2026 on the grounds that: (1) it was untimely filed and (2) contains costs that were either inflated, not paid, or not incurred by CSMC. CSMC opposes.

With

respect to timeliness, Plaintiffs calculate the time for filing the MOC based on the Notice of Entry of Dismissal, which was entered on June 30, 2025. (Mot. at 3:22-4:3.) However, the Certificate of Mailing regarding the Notice of Entry of Dismissal indicates that it was served on July 1, 2026. (See Cert. of Mailing, 6/30/26; Not. of Entry of Dismissal, 6/30/26.) Furthermore, the Notice of Entry of Dismissal and Certificate of Mailing only include the addresses for Plaintiffs. (Ibid.) Thus, it does not appear on the face of the Notice of Entry of Dismissal nor the Certificate of Mailing that it was served on CSMC as to trigger the fifteen (15) day timeline under California Rules of Court, Rule 3.1700, subdivision (a)(1).

Subsequently,

Judgment was entered for CSMC on July 20, 2026. (Judgment re Cedars-Sinai Medical Center, 7/20/26.) The following day, CSMC filed the Notice of Entry of Judgment. (Not. of Entry of Judgment, 7/21/26.) Fifteen calendar days from July 21, 2026, would be August 5, 2026. Therefore, CSMC timely filed its MOC as it was filed on August 4, 2026, which is one day before the deadline to file it would have expired.

As to

CSMC claimed costs of \$1,027.45 consisting of: (1) \$877.45 for filing and motion fees and (2) \$150.00 for jury fees, Plaintiff argue that these are grossly inflated or were not actually incurred by CSMC. (Mot. at 4:5-9.) However, the MOC is verified by CSMC's counsel of record, Sara R. Sabzerou, Esq., thus is prima facie evidence that these costs were incurred. Furthermore, costs for filing and motion fees are expressly recoverable under Code of Civil Procedure Section 1033.5, subdivision (a)(1). Likewise, jury fees are also recoverable under Code of Civil Procedure Section 1033.5, subdivision (a)(1). Nevertheless, CSMC implores the Court to look to its own records in support of finding that these costs were reasonably and necessarily incurred. (Opp. at 4:12-14.)

In

reviewing the Court's records, there is no Notice of Jury Fee Deposit nor Jury Fee Deposit filed with the Court. Therefore, the Court will strike \$23.70 for Notice of Jury Fee Deposit and \$150.00 for Jury Fee Deposit, for total of \$173.70. To the extent that CSMC contends that the fees sought for proof of service, reply brief, case management conference statements, judgment, and notice of entry of judgment were electronic filing fees recoverable under Code of Civil Procedure Section 1033.5, subdivision (a)(14) (See Opp. at 4:1-6), the MOC does not seek these costs under Item 14 as required but sought them under Item 1, which is only for statutory filing fees. Accordingly, the Court will strike \$48.50 for proof of service of the demurrer/motion to strike, \$48.50 for reply briefs, \$23.70 for CMC statements, and \$48.50 for judgment for total of \$169.20. Overall, the Court strikes \$342.90 in costs leaving a remaining recovery of \$684.55 in costs.

IV.

CONCLUSION

Based on the foregoing, Plaintiffs Yevgenya Shevtsov and Tatyana Shevtsov's Motion is GRANTED IN PART. Defendant Cedars-Sinai Medical Center is awarded costs in the reduced amount of \$684.55.

Plaintiffs Yevgenya Shevtsov and Tatyana Shevtsov to
give notice.

Dated: September
14, 2026

Hon. Karen Moskowitz

Judge
of the Superior Court